

23AHCV01863 23AHCV01863

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-06-23

Motion: MOTION FOR SANCTIONS AGAINST PLAINTIFF'S COUNSEL IN THE AMOUNT OF \$6,976.39

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Case Number: 23AHCV01863 Hearing Date: June 23, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF

CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST

DISTRICT

JESSICA

AUSTIN,

Plaintiff(s),

vs.

CITY OF

PASADENA, et al.,

Defendant(s).

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CASE NO.: 23AHCV01863

[TENTATIVE]

ORDER RE: MOTION FOR SANCTIONS AGAINST PLAINTIFF'S COUNSEL IN THE

AMOUNT OF \$6,976.39

Dept.

3

8:30

a.m.

June 23,

2026

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I.

INTRODUCTION

On May 7, 2026, defendant City of

Pasadena ("City") filed this motion seeking sanctions against Corey W. Glave,

counsel of record for plaintiff Jessica Austin ("Plaintiff").

Mr. Glave filed an opposition brief on June

8, 2026.

City filed a reply brief on June 15,

2026.

II.

DISCUSSION

City brings this motion under Code of

Civil Procedure §§ 177.5 and 575.2(a), in addition to Los Angeles Superior

Court ("LASC") Local Rules rule 3.10 and 3.25. City argues that Mr. Glave

should be sanctioned \$3,976.39 because Mr. Glave failed to appear for a status

conference scheduled for November 18, 2025, and a Trial Setting Conference ("TSC")

scheduled on April 6, 2026, which caused City to incur court reporter costs of

\$1,123.89 and \$2,062.50 in fees to prepare this motion, review any opposition

brief, and prepare a reply brief. City also argues that Mr. Glave should be

sanctioned \$3,000, payable to the Court, for violating the Court's Orders made

on June 26, 2025, and February 6, 2026, by failing to appear at the status

conference and the TSC.

City cites to a number of statutes and

court rules, but does not substantiate its claim that it is entitled to recover

court reporter costs due to another party's failure to appear at a status

conference. City's reliance on *Rietveld v. Rosebud Storage Partners* (2004)

121 Cal.App.4th 250 is unavailing because that case involved Rule 12.04(a) of

the Superior Court of Sacramento County, which specifically provided for

sanctions upon noticed motion, including fees and costs, for the failure to

meaningfully participate in arbitration proceedings. Here, City does not

identify any Local Rule authorizing sanctions payable to another party in

connection with the failure to appear at a status conference or TSC. In

comparison, Local Rule 3.37 provides for sanctions if a party or counsel fails

to comply with civil trial rules including "monetary sanctions in the amount of

costs and actual expenses, including reasonable attorneys' fees incurred by

other parties." Local Rule 3.297 provides for sanctions if a counsel fails to

appear at arbitration which "may include, but are not limited to, suitable

compensation to the arbitrator and to the parties who did appear at the

arbitration, plus the attorney's fees incurred in making the request for

sanctions." Furthermore, in *Rietveld*, the attorney's conduct was far

more egregious than Mr. Glave's inadvertent failures to appear. (*Rietveld*,

supra, 121 Cal.App.4th at p. 256 [failure to produce any evidence was

based on belief that mandatory judicial arbitration was “essentially

meaningless proceeding for which minimal effort should be made.”])

In fact, on a spectrum of outrageous

behavior, the Court is more affronted by the City’s suggestion in its moving

papers that the Court gave a “warning” and “stated on the record [that] Mr.

Glave’s office could have simply sent another attorney to attend the status

conference.” (Motion, p. 2.) The motion cites to the portion of the transcript where

the Court stated, “Well, Harley could have come.” (Casarrubias-Gonzalez Decl., Ex.

B, p. 4:15-20.) Characterizing this statement as a prior admonition of Mr.

Glave is a contention purely made in bad faith when counsel for the City well know

that Harley is Mr. Glave’s dog, who was barking away at an earlier hearing, and

not an attorney.

As for City’s argument that the Court

should impose sanctions, payable to the Court, pursuant to Code of Civil

Procedure section 177.5, the Court finds that City’s request for sanctions in

the amount of \$1,500 for each failure to appear is excessive. Mr. Glave

provided sufficient explanation for his failures to appear and sanctions are

unnecessary.

III.

CONCLUSION

Based on the foregoing, City's motion

for sanctions is DENIED.

Dated

this 23rd

day of June 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at indicating

intention to submit on the tentative as directed by the instructions provided

on the court website at www.lacourt.org. Please be advised that if you submit

on the tentative and elect not to appear at the hearing, the opposing party may

nevertheless appear at the hearing and argue the matter. Unless you receive a

submission from all other parties in the matter, you should assume that others

might appear at the hearing to argue. If the Court does not receive emails from

the parties indicating submission on this tentative ruling and there are no

appearances at the hearing, the Court may, at its discretion, adopt the

tentative as the final order or place the motion off calendar.